

16PR00077 Guardianship of David Tyler Jr et al

County: santa-barbara

Division: Guardianship

Department: 2 SM-Cook

Hearing date: 2026-09-29

Motion: Sixt Accounting and Report

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Tentative Ruling: Guardianship of David Tyler Jr et al

Case Number

16PR00077

Case Type

Guardianship

Hearing Date / Time

Tue, 09/29/2026 - 09:00

Nature of Proceedings

Sixt Accounting and Report

Tentative Ruling

Probate Notes:

Appearances required.

A guardianship terminates by operation of law upon the ward reaching the age of majority. (Prob. Code §1600; CRC, Rule 7.1004(b)(2).) HOWEVER, a guardian cannot be discharged from liability until one year elapses from the time the ward reaches the age of majority. (Prob. Code., § 2627(b).)

Although the accounting is recommended for approval, a hearing must be held after February 1, 2027, to determine whether the ward has settled accounts with the guardian and given the guardian a release which is valid if obtained fairly and without undue influence. (Prob. Code., § 2627(a).)

Attorney must appear to set hearing date on discharge.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street

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